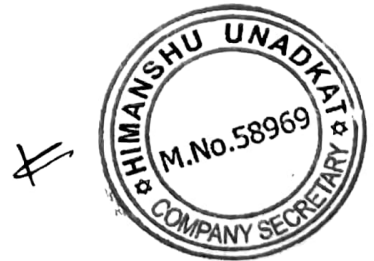




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Company Secretaries

SECRETARIAL DUE DILIGENCE REPORT OF
TRANSBNK SOLUTIONS PRIVATE LIMITED

CIN: U72900DL2022PTC393655



25, Savatram Mills Chawl, Tilak Road, Akola – 444001
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To,

Transbnk Solutions Private Limited

M-32, M-Block Market, 1st Floor,
G.K-II, New Delhi-110048

In accordance with the engagement letter dated September 19, 2022, you engaged us to perform due diligence of Transbnk Solutions Private Limited (hereinafter referred to as "the Company"). The engagement is conducted in accordance with the terms mentioned in the engagement letter. We have performed the necessary work and hereby report our findings to you as follows.

SCOPE

This Report contains the results of the secretarial review undertaken in connection with the Proposed Transaction. This Report is intended to identify preliminary issues relating to the proposed transaction and to aid in the understanding and evaluation of the critical issues in connection with the Proposed Transaction. The Report is not intended to act in any way as a recommendation to proceed (or not to proceed) with the Proposed Transaction, which is a commercial decision for you to make. It is therefore not intended to be, and should not be construed as, an opinion as to matters of law except to the extent apparent from its content.

PLACES VISITED AND SOURCES OF INFORMATION

We have received the Company's documents on email dated September 29, 2022.

Our findings are based on the documents and information available in the records of the following portals* and data provided by the management of the Company:

a) Ministry of Corporate Affairs (<https://www.mca.gov.in>)

*Extracted till September 29, 2022.





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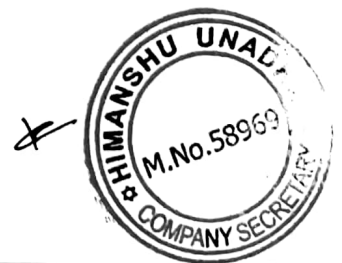
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TERM OF REFERENCE

Our report has been prepared solely for the use of the Board of the Transbnk Solutions Private Limited. It is the property of the author. The report should not be otherwise referred to, in whole or in part, or quoted by expertise or reference in any manner, or distributed in whole or in part or published or copied to any third party without our prior written consent.

VERIFICATION

In completing our work, we have relied on the integrity of the information and data supplied to us. We have not independently verified the information or documentation provided to us unless expressly stated in the report.





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OVERVIEW

1. GENERAL INFORMATION

A. Incorporation, Registered Office, Additional Place of Business:

CIN	:	U72900DL2022PTC393655
Incorporation Date	:	10/02/2022
Registered Office	:	M-32, M-Block Market, 1 st Floor, G.K-II, New Delhi-110048
GSTIN	:	07AAJCT1769M1ZP
PAN	:	AAJCT1769M
Additional place of Business	:	NA

B. Background:

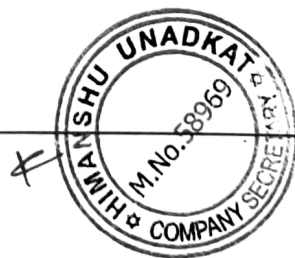
Transbnk Solutions Private Limited was incorporated in the year 2022.

Transbnk Solutions Private Limited is a company dealing in the providing IT related services or software to banking sector and to act as consultant in various fields. Also to carry on the business of software designing, development and other related activities.

C. Activities of the Company:

The Memorandum of Association of the company provides the Main Object to be pursued by the company as follows:

1. To Provide IT related services, software to banking sector act as financial consultants, management consultants, and provide advice, services, consultancy in various fields, general administrative, secretarial, commercial, financial legal, economic, labour, industrial, public relations, scientific, technical, direct and indirect taxation and other levies, statistical, accountancy, quality control and data processing.





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2. To carry on the business of Software designing, development, customisation, implementation, maintenance, testing and benchmarking, designing, developing and dealing in computer software and solutions, and to import, export, sell, purchase, distribute, host (in data centers or over the web) or otherwise deal in own and third party computer software packages, programs and solutions, and to provide internet / web based applications, services and solutions, provide or take up Information technology related assignments on sub-contracting basis, offering services on-site/ offsite or through development centers using owned /hired or third party infrastructure and equipment, providing solutions/ Packages/ services through applications services provider mode via internet or otherwise, to undertake IT enabled services like call Centre Management, Medical and legal transcription, data processing, Back office processing, data warehousing and database management.

2. SHARE CAPITAL:

A. Details of Share capital of the Company as on the date of Due Diligence:

i. **Authorised Share Capital:**

Authorized Capital of the Company is Rs. 10,00,000/- divided into 1,00,000 equity shares of Rs. 10 each.

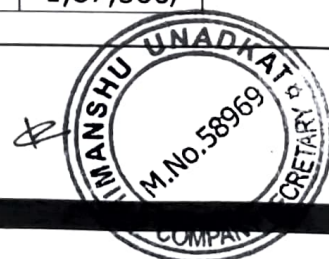
ii. **Issued, Subscribed and Paid-up Share Capital:**

The total issued and subscribed and paid-up capital share capital of the Company is Rs. 7,63,300/- divided into 76,330 equity shares of Rs. 10 each.

iii. **Share holding pattern of the Company as on the date of Due Diligence is as follows:**

S. No.	Shareholders	%	No. of Shares	Per Share	Value (In Rs.)
1	Mr. Akshat Gupta		1,500	10/-	15,000/-
3	Mr. Pulak Jain		18,750	10/-	1,87,500/-
4	Mr. Vaibhav Tambe		21,000	10/-	2,10,000/-
5	Mr. Lavin Kotian		9,750	10/-	97,500/-
6	Mr. Sachin Gupta		18,750	10/-	1,87,500/-

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7	Techstalwarts Software Development LLP		1,500	10/-	15,000/-
8	Techstalwarts Software Development LLP		3,750	10/-	37,500/-
9	Mr. Vasanth Jeyapaul		190	10/-	1,900/-
10	Mr. Dilip Krishnan		190	10/-	1,900/-
11	Mr. Prasanna Lohar		190	10/-	1,900/-
12	Mr. Amit Tyagi		190	10/-	1,900/-
13	Mr. Sandeep Jhingran		190	10/-	1,900/-
14	Ms. Parijat Garg		190	10/-	1,900/-
15	Mr. Asit Oberoi		190	10/-	1,900/-

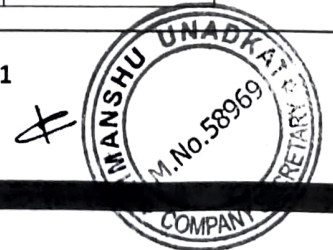
3. MANAGEMENT AND ADMINISTRATION:

A. Directors:

The details of the Directors of the Company as on the date of this due diligence report are as follows:

S. No.	Name of the Director	Address of the Director	Designation	Date of appointment at current designation
1	Mr. Lavin Kotian	B-604 Anita Nagar Bldg 12 Lokhandwala Township, Mahindra Tractors Gate 4 Kandivli East, Kandivli Mumbai Maharashtra 400101	Director	10/02/2022
2	Mr. Akshat Gupta	163F/W2 Western Avenue, Sainik Farms, New Delhi-110062	Additional Director	25/05/2022
3	Mr. Vaibhav Tambe	Flat No- B- 1902 Newa Raj Builder, Plot No 01, sector- 20A, Airoli, Navi Mumbai Airoli	Additional Director	25/05/2022

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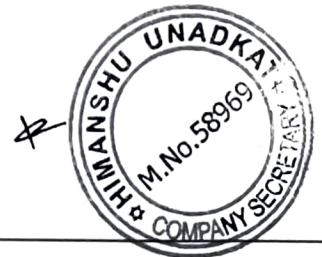
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- * Ms. Payal Kansal has resigned from the Board with effect from June 13, 2022.
- * Mr. Vaibhav Tambe & Mr. Akshat Gupta is appointed as an Additional Director on May 25, 2022.

B. Statutory Auditors:

In the Board Meeting of the Company held on March 08, 2022, the members of the Company have appointed M/s. Arvind K. Jain & Associates, Chartered Accountants having M. No. 083370 as Statutory Auditors of the Company to hold office for 1 financial year i.e., till the ensuing Annual General Meeting to be held for the FY 2023-24.

This report covers only Secretarial part of due diligence.



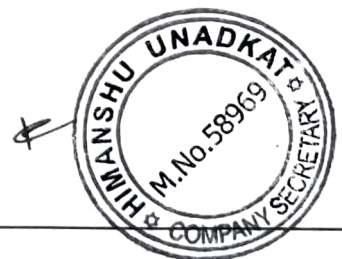
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SECRETARIAL DUE DILIGENCE



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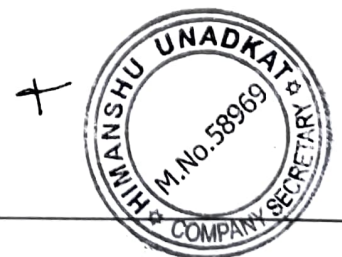
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SECRETARIAL DUE DILIGENCE

Note:

- a) This secretarial due diligence report ('the Report') is based exclusively upon the information and/or document supplied by Transbnk Solutions Private Limited, this report also remains subject to the content and terms of such documents.
- b) We have assumed that all information and/or documents given to us is/are authorized, genuine, accurate and exhaustive and have not made any attempt to authenticate any of the signature affixed to any of them
- c) We have limited our scope to only secretarial issues and have not or commented on the business or financial implications arising out of any transaction of the company.
- d) We do not comment on any laws other than those covered in our offer letter.



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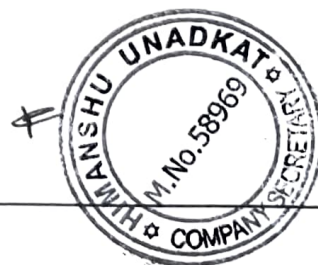


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GLOSSARY

Articles	:	Articles of Association of the Company
AGM	:	Annual General Meeting
EOGM	:	Extra-Ordinary General Meeting
Board	:	Board of Directors of the Company
Companies Act	:	The Companies Act, 2013
TSPL	:	Transbnk Solutions Private Limited
FY	:	Financial Year
INR/Rs.	:	Indian Rupees
ROC	:	Registrar of Companies
SS-1	:	Secretarial Standards for Board Meeting
SS-2	:	Secretarial Standards for General Meetings
DD	:	Due Diligence
The Act	:	Companies Act, 2013



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STATUTORY/REGULATORY COMPLIANCES

A. Annual Returns

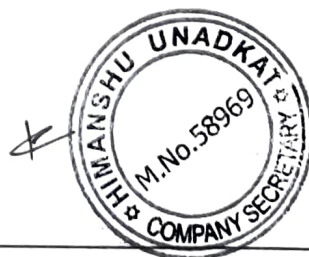
We noted that, the Company is not eligible to file Annual Returns for the FY 2021-22 and hence the diligence regarding the Annual Returns within prescribed time period and payment of applicable fee is not applicable.

B. ROC Filings

The filings made by the Company with Registrar of Companies have been reviewed by us with a critical focus on the following areas:

- Appointment/Resignation of Directors/Whole time Directors/Managing Directors.
- Issue of Shares on Private Placement basis
- Return of Allotment of Shares
- Appointment of Auditor

The filings have generally been made within prescribed time periods and applicable fees has been paid except the observations as mentioned in this report.





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OUR OBSERVATIONS

- **Preparation and Maintenance of Minutes of Board Meetings and General Meetings (High):**

Provision:

Every company shall prepare, sign and keep minutes of the proceedings of every meeting within 30 days of the conclusion of such meeting concerned.

The minute's books shall be preserved permanently and kept in the custody of the company secretary of the company or any director duly authorized by the Board for the purpose and shall be kept in the registered office or such place as Board may decide.

- ✦ *Section 118 of the Companies Act, 2013*
- ✦ *Rule 25 of the Companies (Management and Administration) Rules, 2014*
- ✦ *Secretarial Standard-1 (Meeting of Board of Directors)*
- ✦ *Secretarial Standard-2 (Meeting of Members)*

Observation & Recommendation:

We recommend to prepare the minutes of every meeting of the Board and Members in the manner prescribed in the Companies Act and Secretarial Standards.

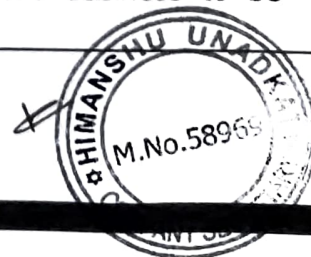
- **Notice, agenda, notes on agenda of Board Meetings and notice of General Meetings (High):**

Provision:

Notice, agenda and notes on agenda shall be given at least 7 days before the Meeting in writing to every director at their address registered with the company through hand delivery or by post or by facsimile or by e-mail or by any other electronic means.

The company must give a clear 21 days' notice to its members for calling the General Meetings. The notice should mention the place, the date and day of the meeting, and the hour at which the meeting is scheduled. The notice should also mention the business to be conducted at the General Meeting.

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- ✦ Section 173 of the Companies Act, 2013
- ✦ Section 101 of the Companies Act, 2013
- ✦ Section 102 of the Companies Act, 2013
- ✦ *Secretarial Standard-1 (Meeting of Board of Directors)*
- ✦ *Secretarial Standard-2 (Meeting of Members)*

Observations & Recommendation:

It is recommended to send Notice, Agenda and Notes to Agenda to every Director of the Company either by e-mail preferably or by hand delivery or by post or by facsimile or by any other electronic means within the prescribed timelines as prescribed in the Act.

Every meeting of members shall be called by giving proper notice within the prescribed timelines as prescribed in the Act. Explanatory statement for every special business item proposed at the general meeting shall be provided along with the notice.

• Proof of sending notice, agenda, draft minutes and final minutes (Medium):

Provision:

Proof of sending Notice and its delivery shall be maintained by the company for such period as decided by the Board, which shall not be less than three years from the date of the Meeting.

Proof of sending Agenda and Notes on Agenda and their delivery shall be maintained by the company for such period as decided by the Board, which shall not be less than three years from the date of the Meeting.

Proof of sending draft Minutes and its delivery shall be maintained by the company for such period as decided by the Board, which shall not be less than three years from the date of the Meeting.

Proof of sending signed Minutes and its delivery shall be maintained by the company for such period as decided by the Board, which shall not be less than three years from the date of the Meeting.





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The company shall ensure that it uses a system which produces confirmation of the total number of recipients e-mailed and a record of each recipient to whom the Notice has been sent and copy of such record and any Notices of any failed transmissions and subsequent re-sending shall be retained by or on behalf of the company as "proof of sending" for such period as decided by the Board, which shall not be less than three years from the date of the Meeting

- ✦ *Secretarial Standard-1 (Meeting of Board of Directors)*
- ✦ *Secretarial Standard-2 (Meeting of Members)*

Recommendation:

We recommend to send notice, agenda, notes on agenda and explanatory statement of every meeting of Directors or Members of Company through E-mail preferable so that proper proof of sending shall be maintained.

Draft minutes and final minutes shall be circulated with in the timelines prescribed with the members and board of directors.

• **Disclosure of Interest by Director (Medium):**

Provision:

Every director shall-

- a) At the first meeting of the Board in which he participates as a director and
- b) at the first meeting of the Board in every financial year ; or
- c) whenever there is any change in the disclosures already made, then at the first meeting held after such change,

disclose his concern or interest (including shareholding) in disclose his concern or interest (including shareholding) in any Company or Companies, Bodies Corporate, Firms, other Association of Individuals in form MBP-1.

- ✦ *Section 184 of the Companies Act, 2013*
- ✦ *Rule 9 of Companies (Meeting of Board and its Power) Rules 2014*

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Recommendation:

Every Directors shall at the beginning of each Financial and after every subsequent change provide disclosures regarding his interest in any Company or Companies, Bodies Corporate, Firms, other Association of Individuals in form MBP-1 to the Company.

• Maintenance of Statutory Registers (High):

Provision:

Every company shall maintain their statutory registers and relevant documents at its registered office for each financial year which provides a true and fair picture of the company's state of affairs. Following are some statutory register which are required to be maintain by company:

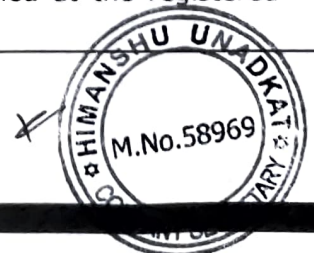
- a) Register of Members
- b) Register of Charges
- c) Register of Directors and KMP
- d) Loan/ Guarantee/ Security given or acquisition of securities
- e) Contracts and Arrangements in which Directors are interested

- ✦ *Section 88 read with Rule 3 of Companies (Management and Administration) Rules, 2014*
- ✦ *Sections 85 read with Rule 10 of Companies (Registration of Charges) Rules, 2014*
- ✦ *Section 170(1) read with Rule 17 of Companies (Appointment and Qualification of Directors) Rules, 2014*
- ✦ *Section 186(9) read with Rule 12 of Companies (Meetings of Board and its Powers) Rules, 2014.*
- ✦ *Section 189 read with Rule 16 of Companies (Meetings of Board and its Powers) Rules, 2014*

Observation & Recommendation:

There are around 15 registers prescribed under the Companies Act, which a Company mandatorily required to be maintained. However, a company shall maintain only those Statutory Registers which apply to them according to the business and transactions. Accordingly, the statutory registers prescribed above shall be maintained at the registered

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office of the Company. Required Statutory Registers have not been maintained by the Company.

- **Appointment of Statutory Auditor (Medium):**

Provision:

The terms for appointment of First Statutory Auditors is defined under Section 139(6) the first auditor should be appointed by the board of directors within 30 days from the registration of the company. Filling Form ADT-1 for appointment of first auditor is not mandatory, company can file the form only for its records and while filling the form keep in mind that the tenure of the auditor is from the date of incorporation till the date of ending of Financial Year. The Form ADT-1 needs to be filed within 15 days from the date of appointment of Auditor.

↓ *Sub Section (6) of Section 139 of the Companies Act, 2013*

Observation:

It has been observed that the Form ADT-1 is filed by the Company after the due date as specified under the Act. Hence, the late fees is paid for filing the said form with ROC.

- **Issue of Shares on Private Placement basis (High):**

Provision:

Rule 14 of the Companies (Prospectus and Allotment of Securities) Rules, 2014 ('Rules') provides the regulations relating to the private placement by companies. The Rules state that the company should offer or invite to subscribe its securities through a private placement offer letter in Form PAS-4.

All private placement offers should be made only to those persons whose names are recorded by the company before sending the invitation to subscribe. The persons whose names are recorded will receive the offer, and the company should maintain a complete record of the offers in Form PAS-5.

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The company can make a private placement of its securities after approval of shareholders of the company for the proposed offer or invitation to subscribe to securities by passing a Special Resolution for every offer or invitation.

A company making any allotment of securities under this section, shall file with the Registrar a return of allotment within fifteen days from the date of the allotment in such manner as may be prescribed, including a complete list of all allottees, with their full names, addresses, number of securities allotted and such other relevant information as may be prescribed.

✦ *Sub Section (6) of Section 139 of the Companies Act, 2013*

Observation:

It has been observed that the Form MGT-14 (Special Resolution) is filed after the due date as specified under the Act. Hence, the late fees is paid for filing the said form with ROC.

• Conclusion:

Based upon the review of available documents & information shared by TSPL, it is concluded that the Company has undertaken considerable efforts to adhere with the secretarial laws and procedures as may be specified under the Companies Act, 2013, rules & regulations.

As per our study, TSPL as a private limited has followed the laws and procedures since incorporation and there are no significant discrepancies found in the process.

However, TSPL is recommended to pay attention on the compliances of secretarial standards as issued by ICSI for good corporate governance.

TSPL's primary objective as per the Memorandum of Association is to provide IT related services software to banking sector act as financial consultants, management consultants, and provide advice, services, consultancy in various fields.

It is observed that the present Board of Directors comprises members who bring in industry expertise to TSPL. The Board of Directors composition should be of well-balanced to support its long-term objectives and the purpose of the overall business goal.

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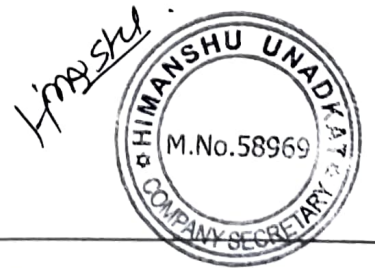




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Therefore, it does not appear to involve any kind of reputational risk to its stakeholders on secretarial compliances safeguards.



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